

SKELETON ARGUMENT ON INTERIM RELIEF

1. Interim injunction. The governing guidance is *American Cyanamid Co v Ethicon Ltd* [1975] AC 396: is there a serious question to be tried, and where does the balance of convenience lie.
2. Duty of care. See *Caparo Industries v Dickman* for the three-stage test.
3. Negligent misstatement. See *Hedley Burne & Co v Heller* [1964] AC 465.
4. Foundational principle. *Donoghue v Stevenson* [1932] AC 562; see also *M'Alister (or Donoghue) v Stevenson*.

TABLE OF AUTHORITIES

- *American Cyanamid Co v Ethicon Ltd* [1975] AC 396
- *Caparo Industries v Dickman*
- *Hedley Burne & Co v Heller* [1964] AC 465
- *Donoghue v Stevenson* [1932] AC 562